

PEOPLE OF THE STATE OF COLORADO, Plaintiff, vs.

Case No: 15T2992

Division: 9
DATE FILED: June 06, 2016

ADVISEMENT PER C.R. CRIM. P. RULE 11 AND PLEA OF GUILTY – DUI

§1. The undersigned acknowledges that he or she is the defendant in this case and that his or her true name is as stated above.

§2. The following is a statement of the rights that the defendant has in this case:

- a. You have the right to enter a plea of not guilty and have a trial in this case either to the Court or to a jury.
- b. You have the right to be represented by an attorney throughout the trial and at all proceedings leading up to trial.
- c. If you do not have the means to hire an attorney, you can ask the Court to appoint one for you without cost to you, and one will be appointed.
- d. You are presumed innocent of the charges pending against you, and that presumption of innocence will remain with you throughout the trial unless and until the prosecution presents evidence to prove you guilty beyond a reasonable doubt.
- e. At the trial you have the right to confront the witnesses called to testify against you and to cross-examine those witnesses.
- f. You have the right to present evidence in your own defense at the trial and to compel the attendance of witnesses by subpoenas issued by this Court.
- g. You have the right to remain silent at the trial or testify in your defense as you choose. If you choose to remain silent, your silence cannot be used against you.
- h. After the trial is over, you have the right to appeal to a higher court to review the judgments of the Court.

- §§. a. I acknowledge that I have read and understand the elements of the offense and the penalty for that offense stated in Section **B** AND SECTION C on the reverse side of this form. I understand that the State would have to prove each element of the offense beyond a reasonable doubt before I could be convicted of that offense in a trial. I am entering a plea of guilty to that offense.
- b. I am entering my plea of guilty voluntarily and not as a result of coercion or undue influence of the part of anyone. There have been no threats, force or promises made to me to cause me to enter this plea.
- c. I understand that the Court will not be bound by any representations made to me by anyone concerning the penalty to be imposed or the granting or denial of probation, unless such representations are included in a formal plea agreement approved by the Court.
- d. I acknowledge that there is a factual basis for this plea or if this plea is a result of a plea bargain, I waive the establishment of a factual basis for the charge.
- e. At this time I am not under the influence of any drugs, intoxicants, or medication that would interfere with my ability to understand the advisement given in this form.
- f. I understand that a plea of guilty to certain offenses such as Driving Under the Influence and Driving While Ability Impaired, and some other offenses, will subject me to a greater penalty if I should ever again be convicted of or plead guilty to the same offense, and that if I have in the past been convicted for such an offense, the penalty may be greater than specified on the reverse.
- g. I understand that the criminal case I am pleading guilty to is separate from the administrative procedures of the Department of Revenue, Motor Vehicle Division ("DMV"). I also understand that there may be further actions by the DMV that may result from this plea including the revocation of my license in certain circumstances and/or the imposition of an interlock-restricted license.
- h. I understand that if I am not a citizen of the United States and I plead guilty or nolo contendere ("no contest") to a crime, this plea may cause collateral consequences including but not limited to deportation or removal, exclusion from admission to the United States, or denial of naturalization. I understand that a deferred sentence may be considered a conviction for immigration purposes. I understand that I may confer with an attorney regarding immigration issues and collateral consequences prior to entering into this plea. I understand that this court has no authority regarding immigration issues. No promises or representations have been made to me by the Court regarding immigration consequences other than the plain statements made in this paragraph.

§4. I acknowledge that I have read and understand the advisement of rights in Section 2, and I understand that by entering my plea of guilty to the charge I am waiving and giving up all the rights set forth in that Section. I also acknowledge that I have read and understand the statements in Sections 1, 2, 3, and that those statements are true and correct.

6/6/16
DATE

David Nimer
DEFENDANT'S NAME

1700 17th St. #B1 Boulder, CO 80302 (650) 430-6255
DEFENDANT'S ADDRESS and PHONE NUMBER -- Please Print

X [Signature]
DEFENDANT'S SIGNATURE

ATTORNEY'S SIGNATURE

§5. WAIVER OF RIGHT TO A LAWYER

I acknowledge that I understand my right to have a lawyer represent me as explained in Section 2. I am voluntarily giving up that right and I choose to enter a plea of guilty at this hearing without the advice of a lawyer.

X _____
DEFENDANT'S SIGNATURE

§6. IMMIGRATION CONSEQUENCES

A plea of guilty or no contest even when accepted as a deferred sentence will be considered a conviction for immigration purposes. You should consult with an attorney regarding collateral consequences. Neither the District Attorney nor the Court may advise you regarding these consequences.

DATE _____

X _____
DEFENDANT'S SIGNATURE

FINDING OF THE COURT AND ORDER

The Court finds that the Defendant has entered his guilty plea to the charge voluntarily with a full understanding of his or her rights, the nature of the charge or charges and the possible penalties; therefore, the Court accepts the plea and enters judgment on the plea.

DATE _____

X _____
JUDGE/MAGISTRATE

Section A: THE ELEMENTS AND PENALTIES OF DRIVING WHILE ABILITY IMPAIRED BY ALCOHOL AND/OR DRUGS (DWAI), 42-4-1301(1)(b), C.R.S., are:

1. That you were operating a vehicle in Boulder County, Colorado on the date alleged in the complaint.
2. That you had voluntarily consumed alcohol and/or drugs that affected you, even to the slightest degree, so that you were less able than you ordinarily would have been, either mentally or physically or both to exercise clear judgment, sufficient physical control, or due care in the safe operation of a vehicle.
3. This offense is a misdemeanor, and the penalty for this offense is 2 to 180 days in jail and a fine of \$200.00 to \$500.00. The minimum jail is mandatory unless you complete an alcohol or drug evaluation and treatment as recommended including either level I or II alcohol education or drug driving safety education. The court may impose up to a 2-year term of probation. In addition to any other penalty, you must perform 24 to 48 hours of useful public service. C.R.S. § 42-4-1307(4).
4. Eight (8) points will be assessed against your driver's license or privilege. If you were on a bicycle, zero (0) points will be assessed against your driver's license or privilege. This offense is considered a qualified offense for the purposes of the classification of "Habitual Traffic Offender."
5. If you are convicted in this case of DWAI and you had an alcohol test of your blood or breath that resulted in a blood alcohol level of at least .200 grams of alcohol per 100 milliliters of blood or at least .200 grams of alcohol per 210 liters of breath, the penalty for this offense is 10 days to one year in jail and/or a fine of \$200.00 to \$500.00. The court may **not** suspend the mandatory minimum jail. Jail alternatives may be authorized. In addition, the court may impose up to a 2-year term of probation with conditions to include alcohol and drug education and therapy, as recommended, no alcohol, no drugs, and monitored sobriety for one year. In addition to any other penalty, you must perform 24 to 48 hours of useful public service.

Section B. THE ELEMENTS AND PENALTIES OF DRIVING UNDER THE INFLUENCE OF ALCOHOL AND/OR DRUGS (DUI), 42-4-1301(1)(a), C.R.S., are:

1. That you were operating a vehicle in Boulder County, Colorado on the date alleged in the complaint.
2. That you had voluntarily consumed alcohol and/or drugs that affected you so that you were substantially incapable, either mentally or physically or both to exercise clear judgment, sufficient physical control, or due care in the safe operation of a vehicle.

3. This offense is a misdemeanor, and the penalty for this offense is 5 days to one year in jail and a fine of \$600.00 to \$1000.00. The minimum jail is mandatory unless you complete an alcohol or drug evaluation and treatment as recommended including either level I or II alcohol or drug education and therapy, as recommended. The court may impose up to a 2-year term of probation. In addition to any other penalty, you must perform 48 to 96 hours of useful public service. C.R.S. § 42-4-1307(3).
4. Twelve (12) points will be assessed against your driver's license or privilege. If you were on a bicycle, zero (0) points will be assessed against your driver's license or privilege. This offense is considered a qualified offense for the purposes of the classification of "Habitual Traffic Offender."
5. If you are convicted in this case of DUI and you had an alcohol test of your blood or breath that resulted in a blood alcohol level of at least .200 grams of alcohol per 100 milliliters of blood or at least .200 grams of alcohol per 210 liters of breath, the penalty for this offense is 10 days to one year in jail and/or a fine of \$600.00 to \$1000.00. The court may **not** suspend the mandatory minimum jail. Jail alternatives may be authorized. In addition, the court may impose up to a 2-year term of probation with conditions to include alcohol or drug education and therapy, as recommended, no alcohol, no drugs, and monitored sobriety for one year. In addition to any other penalty, you must perform 48 to 96 hours of useful public service.

Section C: SECOND AND SUBSEQUENT OFFENSES:

1. If you have been convicted of a previous DWAI, DUI, DUI per se, habitual user, alcohol related vehicular homicide, alcohol related vehicular assault, aggravated driving with a revoked license pursuant to §42-2-206(1)(b)(I)(A) or (1)(b)(I)(B), as that crime existed before August 5, 2015, or driving while revoked under alcohol related restraint offense at any time prior to this conviction, the penalty for this offense is 10 days to one year in jail and a fine of \$600.00 to \$1500.00. Ten days must be served consecutively, with no earned time or good time credit. Jail alternatives may be authorized with no day for day credit. The court may **not** suspend the mandatory minimum jail. In addition, the court must impose a minimum 2-year term of probation with conditions to include a suspended sentence of imprisonment in the county jail for one year, Level II education/therapy and no alcohol or drugs and monitored sobriety for one year. In addition to any other penalty, you must perform 48 to 120 hours of useful public service. C.R.S. § 42-4-1307(5)(a).
2. If you have been convicted of a previous DWAI, DUI, DUI per se, habitual user, alcohol

related vehicular homicide, alcohol related vehicular assault, aggravated driving with a revoked license pursuant to §42-2-206(1)(b)(I)(A) or (1)(b)(I)(B), as that crime existed before August 5, 2015, or driving while revoked under alcohol related restraint offense **within five years prior to this conviction**, the penalty for this offense is 10 days to one year in jail and a fine of \$600.00 to \$1500.00. Ten days must be served consecutively, with no earned time or good time credit. Work/education release *may* be authorized, under certain conditions, with no day for day credit. In addition, the court must impose a minimum 2-year term of probation with conditions to include a suspended sentence of imprisonment in the county jail for one year, Level II education/therapy and no alcohol or drugs and monitored sobriety for one year. In addition to any other penalty, you must perform 48 to 120 hours of useful public service. C.R.S. § 42-4-1307(5)(a), (b) & (c).

3. Except as provided in §42-4-1301(1)(a), (1)(b) and (2)(a), regarding the class 4 felony offense of DUI and DWAI, if you have been convicted of **two or more** previous DWAI, DUI, DUI per se, habitual user, alcohol related vehicular homicide, alcohol related vehicular assault, aggravated driving with a revoked license pursuant to §42-2-206(1)(b)(I)(A) or (1)(b)(I)(B), as that crime existed before August 5, 2015, or driving while revoked under alcohol related restraint offense at any time prior to this conviction, the penalty for this offense is 60 days to one year in jail and a fine of \$600.00 to \$1500.00. Sixty days must be served consecutively, with no earned time or good time credit. Work/education release *may* be authorized, under certain conditions, with no day for day credit. In addition, the court must impose a minimum 2-year term of probation with conditions to include a suspended sentence of imprisonment in the county jail for one year, Level II education/therapy and no alcohol or drugs and monitored sobriety for one year. In addition to any other penalty, you must perform 48 to 120 hours of useful public service. C.R.S. § 42-4-1307(6)(a)(I) & (b).

4. If, at the time of sentencing, you have **two prior convictions** of DUI, DUI per se, DWAI, alcohol related vehicular homicide, or alcohol related vehicular assault, **and the first of your two prior convictions was based on a violation that occurred not more than seven years before the violation for which you are being sentenced**, the court may make residential alcohol treatment a condition of probation and may place you in a community corrections program that can provide the appropriate level of treatment. C.R.S. § 42-4-1307(6)(c).

COUNTY COURT, BOULDER COUNTY, COLORADO Court Address: Boulder County Court 1777 6 th Street Boulder, CO 80302	COURT USE ONLY
PEOPLE OF THE STATE OF COLORADO vs. <u>David Nimer</u> DEFENDANT	
Case No: <u>15T2992</u> Division: <u>a</u>	
DEFENDANT'S STATEMENT REGARDING PRIOR OR PENDING CHARGES OR CONVICTIONS	

I am the Defendant named above and request the Court to approve the plea agreement reached with the District Attorney regarding my **alcohol and/or drug related driving offense**.

I. I understand Colorado law imposes different penalties if I have had prior convictions for any of the following offenses:

- A. driving under the influence of alcohol or drugs or both alcohol and drugs (DUI)
- B. driving while ability impaired by alcohol or drugs or both alcohol and drugs (DWAI)
- C. driving with excessive alcohol content (DUI per se)
- D. habitual user
- E. driving while revoked under alcohol related restraint (DUR Alc.)
- F. alcohol related vehicular assault
- G. alcohol related vehicular homicide
- H. aggravated driving while revocation prohibited while DUI/DWAI (Agg. HTO)

(Convictions under the laws of Colorado, the laws of any other state, the United States, or any territory subject to the jurisdiction of the United States affect penalties under this scheme.)

II. I hereby state that the following information is complete, true and accurate to the best of my knowledge, belief and understanding: (**mark applicable boxes**)

- ☐ I have never been **CHARGED** with any of the offenses listed above.
- ☐ I have never been **CONVICTED** of any of the offenses listed above.
- ☐ I have no charges **PENDING** against me at this time for any of the offenses listed above.
- ☐ I have previously been **CONVICTED** for one or more of the offenses stated above as follows:

Offense(s) convicted of: _____
 Date of conviction: _____ State/Jurisdiction: _____

Offense(s) convicted of: _____

Date of conviction: _____ State/Jurisdiction: _____

Offense(s) convicted of: _____

Date of conviction: _____ State/Jurisdiction: _____

Offense(s) convicted of: _____

Date of conviction: _____ State/Jurisdiction: _____

☒ I have been previously **CHARGED** with one or more of the offenses stated above as follows:

Offense(s) **charged**: DWAI - 15 T 2454

Date of Charge: _____ State/Jurisdiction: Boulder

Disposition: _____

☐ **CHARGES ARE PENDING** against me in the following State(s)/ Jurisdiction(s):

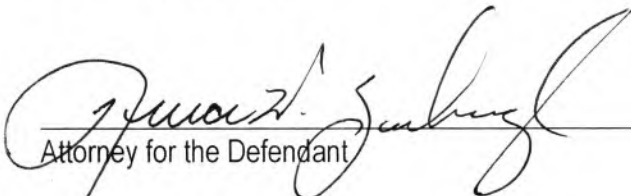
Charge(s) pending: _____ State/Jurisdiction: _____

- III. I understand the plea agreement offered by the District Attorney and accepted by the Court is dependent on the accuracy of the information provided in this statement. Both the Court and the District Attorney rely on the accuracy of the information provided by me, in this statement.
- IV. Further, I understand that I am required to submit myself for an alcohol and drug evaluation as part of my plea agreement.
- V. I understand that if any of the information in this statement is not complete, truthful, or accurate, the Court will require me to appear in court for further proceedings which may include either a re-sentencing or vacating (canceling) of my plea agreement, or such other Orders determined appropriate by the Court.


Defendant's Signature

6/6/16

Date


Attorney for the Defendant

6/6/16

Date

COUNTY COURT, BOULDER COUNTY, COLORADO		▲ COURT USE ONLY ▲
Boulder County Justice Center 1777 Sixth Street Boulder, Colorado 80302 (303) 441-3750 Fax: (303) 441-4750	Longmont Court House 1035 Kimbark Street Longmont, Colorado 80501 (720) 564-2522 Fax: (720) 564-2526	
PEOPLE OF THE STATE OF COLORADO vs. <u>David Nimer</u> Defendant		Case No: <u>15T2992</u> Division: <u>9</u>
TRIAL DATA CERTIFICATE		

STATUS CONFERENCE will be held 3/14/16 @ 8:30 in Courtroom B
 Trial Data Certificate must be filed no later than 7 days prior to the Status Conference.

On (date) 3/3/16, plea disposition and case status discussion was held between
 DDA M Bradford, and

- ☐ the defendant acting PRO SE
☒ DEFENSE COUNSEL Bruce Scurlough
☐ PUBLIC DEFENDER
 ☐ By telephone
 ☐ By email
 ☒ In person

The Defendant must be present at the Status Conference. If a disposition is not reached at the Status or Case Management Conference, the Court will set a motion hearing and/or trial date. If you have not accepted the offer by the CMC date, the Court may not accept the disposition beyond this date.

The OFFER in this case is:
 If no offer extended, please state the reason. DWAJ (b7)

NO PLEA DISPOSITION DISCUSSION took place:
 Please state reason why and attempts made to contact the defendant/defense counsel/public defender.

DEFENDANT/ ATTORNEY

Please update any new address information:

Address _____

Phone: _____

DISTRICT ATTORNEY

District Attorney Telephone:

Boulder Office: (303) 441-3700

Longmont Office (303) 682-6800

THERE IS IMPORTANT INFORMATION ON THE BACK OF YOUR COPY.
 BE SURE TO READ IT CAREFULLY.

DISCOVERY

In criminal proceedings, a defendant has the right to obtain discovery pursuant to Colo. R. Crim. P. 16. Discoverable material that the District Attorney's Office possesses in regards to your case will be made available to you upon request. **Please allow 3-4 weeks from your Arraignment or arrest date for the DA's Office to obtain police reports and other discovery materials for your case and to build a file. The DA's Office Discovery Unit typically processes discovery requests within 48 hours of receipt of the request. You will be contacted by the DA's Office once your discovery is ready for pickup.** You may request discovery via any of the following:

1. **Preferred Method:** submit a request online at <http://www.bouldercounty.org/safety/court/pages/requestdiscovery.aspx>
2. Call our Discovery Unit at (303) 441-1624 (Boulder cases) or (303) 682-6800 (Longmont cases)
3. Email a request to DAMisdemeanorDiscoveryRequest@bouldercounty.org

Discovery may be released to an attorney of record (who has filed an entry of appearance on behalf of the defendant in the case for which the request is being made), an employee or agent of the attorney of record, or a defendant if the defendant is not represented by an attorney. Full information regarding the District Attorney's discovery procedures and costs is available at:

<http://www.bouldercounty.org/safety/court/pages/discoveryunit.aspx>

You may also contact the deputy District Attorney assigned to your case with specific discovery questions.

NOTICE

THIS NOTICE SERVES AS THE DISTRICT ATTORNEY'S OFFICIAL REQUEST TO YOU FOR DISCOVERY.

The People request, subject to constitutional limitations, to inspect and copy or photograph any reports or statements of experts, made in conjunction with the particular case, including results of physical or mental examinations and of scientific tests, experiments or comparisons. This request includes re-tests of the defendant's blood or breath in DUI/DWAI cases. **Please be advised that in all DUI/DWAI cases involving a blood or urine test, the People intend to introduce at trial the result of the chemical test through §16-3-309(5), C.R.S. without the lab technician present. Please review your responsibilities under this statute.**

Pursuant to Colo. R. Crim. P. 16 and C.R.E. 705, the People request the names of all experts to be called as witnesses for the defense and the underlying facts or data supporting the expert's opinion in that particular case. If the expert has not written a report, the People request a written summary of the expert's expected testimony describing the witness's opinions and the bases and reasons for those opinions including results of physical or mental examinations and of scientific tests, experiments or comparisons. If defense intends to elicit any testimony regarding a medical condition, the People request all medical records relevant to the anticipated testimony no later than 35 days prior to trial.

The defendant is also required to disclose, subject to constitutional limitations, the nature of any defense, other than alibi, which the defense intends to use at trial. The defense is also to disclose the names and addresses of persons whom defense counsel intends to call as witnesses at trial. Pursuant to Colo. R. Crim. P. 16(II)(c), this disclosure must be at least seven days before trial. The defendant is required to disclose any alibi defense at least 35 days prior to trial.

All parties are subject to the duty to continually disclose additional material or information which is subject to disclosure, including the names and addresses of any additional witnesses who have become known or the materiality of whose testimony has become known to the DA after making available the written list. (Colo. R. Crim. P.16(III)(b)).

PLEA AGREEMENTS

The Court is not obliged to accept any plea agreement between the parties.

Plea offers are subject to change if new information is received by the District Attorney's Office, or if one of the following events occurs: (1) the defendant is charged with a new criminal offense while this case is pending; (2) the defendant willfully fails to appear for court in this case; (3) the defendant does not comply with bond conditions or pre-trial release or probation (if applicable). The offer is contingent on the defendant's criminal record being limited to that contained in the discovery provided to the defense by the District Attorney in this case.

COUNTY COURT, BOULDER COUNTY, COLORADO

Court Address: Boulder Justice Center
1777 Sixth St. P.O. Box 4249
Boulder, CO 80306-4249
Phone Number: 303-441-3750

^ COURT USE ONLY ^

Case Number: 2015T 002992

The People of the State of Colorado
vs.
NIMER, DAVID GARIBOTTO

Division: 9

SENTENCE ORDER

Defendant: NIMER, DAVID GARIBOTTO	Date of Birth: 05/31/1991	
Count	Class	Plea
1 42-4-1409(3) - FAILURE TO DISPLAY PROOF OF INSURANCE	T1	Plea Not Guilty
2 42-4-1301(1)(a);42-4-1307(5) - DRIVING UNDER THE INFL -W/	M	Plea of Guilty
3 42-4-1301(2)(a) - DRIVING UNDER THE INFLUENCE PER SE	M	Plea Not Guilty
		Finding
		Disb by DA
		Guilty
		Disb by DA

ASSESSED FINES & COSTS

Count # 2	
Court Costs	\$21.00
Court Security Cash Fund	\$5.00
E-Discovery	\$5.00
Genetic Testing Surcharge	\$2.50
Victims Assistance Fund	\$222.00
Restorative Justice Surcharge	\$10.00
Family Friendly Surcharge	\$1.00
Probation: 2 Years	
Community Service: 48 Hours	
Jail SUSPENDED: 1 Years	
Work Release: 120 Days	
Driving Und Infln/Abil Impaired	\$600.00
Drug Standardized Assessment	\$45.00
TOTAL	\$911.50

Concurrent with case number 15T 2454 in County Court, Boulder County

Other Conditions of Sentence:

BAC .128
2 YEARS MONTHS PROBATION
ALCOHOL EVAL AND TREATMENT
ATTEND MADD PANEL
NO ALCOHOL OR DRUGS
SUBSTANCE ABUSE MONTIORING
NO DRIVING WITHOUT VALID LICENSE
120 DAYS WORK RELEASE WAIT OUT OF CUSTODY FOR BED SPACE
\$100 COMMUNITY SERVICE FEE NOT INCLUDED IN ABOVE TOTAL, PAY DIRECTLY TO
COMMUNITY JUSTICE SERVICES /TRM

MOORE, KAROLYN VAL	06/06/2016
Judge/Magistrate	Date
NIMER, DAVID GARIBOTTO	06/06/2016
Defendant	Date

*****NOTICE*****
Following this hearing you are to present this form to the Clerk's Office for payment. Payment is due by the end of business on your Court Date. Pursuant to §16-11-101.6, C.R.S., if the Defendant does not pay all amounts assessed at the time of order, the Defendant shall pay an additional time payment fee. In addition, the Defendant may be assessed a late penalty fee each time payment is not received on or before the due date.